CALIFORNIA BOARD OF BEHAVIORAL SCIENCES
COMPLAINT AGAINST LICENSED MARRIAGE AND FAMILY THERAPIST

Licensee: KATHERINE A. PALACIOS
License Type: Licensed Marriage and Family Therapist (LMFT)
License Number: 44555
License Status: License Renewed & Current (Exp. February 28, 2027)
Board: California Board of Behavioral Sciences
Incident Date: In/On or about August 2025
Location: Stockton, San Joaquin County, California

Complainant: Brendan Ngehsi Newanforbi
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COMPLAINT DESCRIPTION

I. INTRODUCTION

I am filing this complaint against Katherine A. Palacios, LMFT, License Number 44555, who serves as the Clinical Director of the HOPE Program (operated by HOPE Psychotherapy, Inc.) located at 5403 N. Pershing Avenue, Suite 200, Stockton, CA 95207. HOPE is a CASOMB-certified sex offender treatment provider that contracts with the California Department of Corrections and Rehabilitation ("CDCR") to provide mandatory treatment services under California Penal Code § 3008(d). As a licensed therapist exercising delegated governmental authority over liberty-affecting treatment determinations, Ms. Palacios is subject to the professional and ethical standards governing LMFTs under the California Business and Professions Code and regulations administered by the Board of Behavioral Sciences.

This complaint arises from two categories of professional misconduct: (1) false, defamatory, and retaliatory statements Ms. Palacios made about me during a Case Conference/Containment Team Meeting ("CTM") held in/on or about August 2025 at a CDCR parole office in Stockton, California; and (2) Ms. Palacios's ongoing pattern of applying a blanket retention policy—rather than individualized clinical assessments—to determine my treatment status, in violation of her professional duties as a licensed therapist.

II. THE AUGUST 2025 CASE CONFERENCE INCIDENT — DEFAMATORY AND RETALIATORY STATEMENTS

A. Setting and Attendees. In/on or about August 2025, I was directed to report to the CDCR parole office in Stockton, California, for a Case Conference/Containment Team Meeting. Upon

arrival, I was subjected to a pat-down search by parole agents before being escorted into the meeting room. The following individuals were present:

(a) Agent Chow, Parole Agent, CDCR;
(b) Agent G. Noguchi #7284, Supervising Parole Agent, CDCR (incoming supervisor);
(c) Agent A. Derrick #6910, Parole Agent, CDCR (my assigned parole agent);
(d) The then-current supervising parole agent (now retired, name unknown); and
(e) Defendant Katie A. Palacios, LMFT, Director, HOPE Program.

B. Ms. Palacios's Defamatory Statements. Prior to Ms. Palacios's remarks, I conducted myself in a respectful and cordial manner throughout the meeting. Ms. Palacios herself acknowledged this fact at the outset of her remarks. When it came time for Ms. Palacios to address the meeting, she directed her remarks at me and stated, in substance:

> *"Mr. Newanforbi, I am impressed with your performance today. You present a completely opposite side at the HOPE group, wouldn't you agree?"*

I responded by stating: "I 100% disagree with that statement."

Ms. Palacios then continued, making the following statements in the presence of all CTM attendees:

> *"You're disruptive during HOPE group sessions, often deviating from the curriculum to talk how you disagree with the treatment. You're a ringleader, because when you start complaining then the other guys chime in. Your behavior is abhorrent and you're often disrespectful to my staff. Quite frankly I'm shocked at the acting job you've put on today, it is quite frankly impressive."*

C. The Statements Were False. Ms. Palacios's statements were false in the following material respects:

"You're disruptive." I was not disruptive. I raised legitimate concerns about program conditions during HOPE group sessions in 2024 and 2025, including my prolonged retention in the program despite completion of all requirements, the repeated loss of my completed homework by program staff, and the disruption of my progress caused by repeated clinician turnover and resulting group resets. These complaints constituted constitutionally protected speech addressing matters of public concern. Ms. Palacios falsely recharacterized protected expression as clinical misconduct.

"You're a ringleader." I was not a ringleader. I expressed my own views during group sessions. Other participants who independently agreed with my concerns chose to voice their own opinions. Ms. Palacios falsely attributed the independent speech of other participants to my influence, creating the false impression that I was orchestrating group dissent or insubordination. Notably, Ms. Palacios herself admitted the basis: "because when you start complaining then the other guys chime in"—i.e., others voluntarily agreed.

"Your behavior is abhorrent." My behavior was not abhorrent. I had maintained compliance with my parole conditions for approximately four and a half years, completed all assigned HOPE Program coursework multiple times, and had no major parole violations. The word "abhorrent"—meaning extremely bad, repugnant, or detestable—was a gross and false characterization of my conduct.

"You're often disrespectful to my staff." I was not disrespectful to HOPE Program staff. I raised legitimate concerns in a manner appropriate to the group setting. Ms. Palacios conflated disagreement and advocacy with disrespect.

"I'm shocked at the acting job you've put on today." I was not acting. My respectful and cordial demeanor at the CTM meeting was genuine and consistent with my character as observed by other parole agents, including Agent Chow, who had interacted with me extensively and knew me to be respectful and professional. By characterizing my genuine conduct as a performance, Ms. Palacios communicated to all officials present that I was fundamentally deceptive and that my good behavior could not be trusted—a false statement about my character designed to undermine my credibility with the very officials who controlled my liberty.

D. Agent Chow's Reaction Confirms the Falsity. Immediately after Ms. Palacios concluded her statements, Agent Chow—a CDCR parole agent who had interacted extensively with me over a sustained period—looked at me and stated, in substance: "Newanforbi, what's going on?" Agent Chow's visible surprise at Ms. Palacios's characterization demonstrated that her description of me as "abhorrent," "disruptive," and a "ringleader" did not match the person Agent Chow knew through extensive firsthand experience.

E. Ms. Palacios Acted With Malice and Retaliatory Intent. Ms. Palacios's statements were made with actual malice—knowledge of their falsity or reckless disregard for the truth. She acknowledged my respectful conduct at the CTM meeting and then deliberately reframed it as deception. The "ringleader" label was explicitly tied to my protected complaints. Following the CTM meeting and the resulting escalation of my parole supervision, I curtailed my speech during HOPE group sessions out of fear of further retaliation. Ms. Palacios subsequently remarked during group sessions that I was "doing better" and stated she had been "putting in a good word" for me with my parole agent—confirming that she viewed my exercise of free speech as the problem and my silence as the solution. This demonstrates her characterizations were not good-faith clinical assessments but were designed to punish and suppress my protected expression.

III. IMMEDIATE AND CONCRETE HARM FROM THE AUGUST 2025 STATEMENTS

Escalation of parole supervision. Immediately following Ms. Palacios's statements, Agent Derrick recommended that my supervision level be increased from once per month to twice per month. The supervising parole agent present at the meeting approved this escalation on the spot. This doubling of my supervision frequency was a direct result of Ms. Palacios's characterization of me as "abhorrent," "disruptive," and a "ringleader."

Incorporation into official CDCR reports. Ms. Palacios's characterizations of me as "disruptive" and a "ringleader" were subsequently incorporated into the CDCR Form 1502-DR Discharge Review Report prepared on or about November 12, 2025. This report relied on input from both Ms. Palacios and Agent Derrick and recommended my continued retention on parole, directly extending state supervision over my liberty based in substantial part on Ms. Palacios's false characterizations.

Destruction of credibility with parole officials. By telling the room that my respectful conduct was an "acting job," Ms. Palacios communicated to every official present—including my current parole agent, his incoming supervisor, and the presiding supervisor—that I was fundamentally deceptive, making it impossible for me to be believed in future interactions regardless of my actual conduct.

Chilling of protected speech. Following the CTM meeting, I curtailed my speech during HOPE group sessions, abandoned written complaints, and experienced physiological symptoms of anxiety including increased heart rate, shaking hands, and nervousness during parole interactions.

Emotional distress. Ms. Palacios's statements caused me significant emotional distress, including anxiety, humiliation, depression, sleep disruption, hypervigilance, and fear of speaking. I was effectively shut down during the CTM meeting with no meaningful opportunity to respond to her attack on my character in front of the officials who controlled my liberty.

IV. APPLICATION OF A BLANKET RETENTION POLICY IN LIEU OF INDIVIDUALIZED CLINICAL ASSESSMENT

A. The Blanket Retention Policy. Beyond the August 2025 incident, Ms. Palacios's professional misconduct extends to her ongoing implementation of HOPE's blanket retention policy—an official policy of refusing to certify "completion" for any parolee prior to discharge from parole, regardless of clinical progress, compliance, risk reduction, or time in treatment. This policy was documented under oath by HOPE's own Executive Director of Clinical Training in the case of *In re Frederick Dwyer*, No. SC-080355A (San Mateo Superior Court, March 20, 2023), where the court found this practice "vitiates the Legislature's directive" under Penal Code § 3008(d)(2). Despite this judicial condemnation, Ms. Palacios has continued applying the identical policy to my treatment through November 2025 and beyond.

B. Misrepresentation of Policy-Driven Predeterminations as Individualized Clinical Assessments. Ms. Palacios represented to CDCR—through treatment status reports, CTM inputs, and the November 2025 Discharge Review Report—that I have "not completed" sex offender treatment. This characterization was not the product of an individualized clinical assessment of my progress, risk reduction, or compliance. It was the automatic output of HOPE's blanket retention policy, which makes completion impossible for all participants prior to parole discharge. Ms. Palacios knew this characterization did not reflect my individual clinical performance because the policy forecloses completion for every participant without exception. As a licensed therapist, Ms. Palacios has a professional and ethical duty to provide individualized clinical assessments—not to misrepresent policy-driven predeterminations as clinical judgments to governmental agencies that rely on those representations to make liberty-affecting decisions.

C. Violation of Regulatory Requirements. Effective April 17, 2025, Title 15 CCR § 3574(f)(1) explicitly provides that "Treatment completion and parole discharge are legally separate decisions." A treatment provider that refuses to certify completion until discharge from parole collapses these separate decisions into one, in direct violation of the regulation. Despite this regulatory mandate—enacted specifically to address the deficiencies identified in the *Dwyer* ruling—Ms. Palacios has continued to apply HOPE's blanket retention policy through November 2025 and beyond.

V. OPERATION OF AN ARBITRARY TREATMENT STRUCTURE WITH NO PUBLISHED CRITERIA

Under Ms. Palacios's direction as Clinical Director, HOPE's treatment structure requires mandatory phase repetitions with no basis in statute or regulation. Participants must complete the "Core" phase twice, the "Maintenance" phase twice, and then a "titration" phase before being

considered for program completion. This framework appears nowhere in Penal Code § 3008(d) or Title 15 CCR § 3574, and results in participants remaining in treatment for 5–7+ years with no meaningful prospect of completion.

Ms. Palacios, as Clinical Director, has never provided me with:

(f) Written criteria for program completion;
(g) A written explanation of what conduct or progress is required to advance through phases;
(h) An appeal process for titration or phase-advancement decisions;
(i) Any mechanism to challenge lost homework or forced phase restarts.

Ms. Palacios has admitted that homework assignments are "routinely lost" within the HOPE Program, yet participants—including me—are forced to restart phases due to staff turnover or job-related group changes, forfeiting progress previously earned. The combined effect is that my characterization as "non-complete" was predetermined from the day I entered the program and bears no relationship to my individual clinical progress, compliance, or risk level.

VI. FINANCIAL CONFLICT OF INTEREST UNDERMINING CLINICAL OBJECTIVITY

HOPE operates under a fee-for-service billing model. Per the Alameda County Probation Department Procurement Contract No. 26374 (First Amendment approved January 9, 2024), HOPE bills: $100.00 per group psychotherapy session (90 minutes); $100.00 per Collaborative Model Team meeting (per client staffed, 90 minutes); $200.00 per individual psychotherapy session (60 minutes); $500.00 per Polygraph Examination; $1,800.00 per psychosexual evaluation; and $125.00 per quarterly treatment plan.

A single parolee attending two group sessions per week generates approximately $10,600 annually in baseline group and CTM fees alone. Over my 10-year parole term, this represents approximately $106,000 in baseline revenue from my continued enrollment. HOPE's contracts provide no documented compensation, bonus, or incentive for successful treatment completion. Revenue terminates upon discharge. Ms. Palacios, as Clinical Director, controls the "completion" determination that CDCR uses as a gatekeeper for discharge eligibility, while possessing a direct, ongoing financial interest in ensuring that determination is never favorable. This conflict of interest compromises the clinical objectivity required of a licensed marriage and family therapist and raises serious ethical concerns under the professional standards governing LMFTs.

VII. PROFESSIONAL AND ETHICAL STANDARDS VIOLATED

Ms. Palacios's conduct raises serious concerns under the professional and ethical standards governing Licensed Marriage and Family Therapists, including but not limited to:

1. **Duty to provide individualized clinical assessments:** Ms. Palacios applied a blanket retention policy to determine my treatment status rather than conducting an individualized assessment of my clinical progress, compliance, risk reduction, or treatment needs. A licensed therapist exercising delegated authority over a client's liberty

has a heightened duty to ensure that clinical determinations are individualized, evidence-based, and not the product of administrative convenience or financial incentive.

2. **Duty to maintain professional objectivity free from financial conflicts:** Ms. Palacios controls the treatment completion determination while operating under a billing model that financially rewards retention and penalizes discharge. This undisclosed conflict of interest compromises the objectivity required of a licensed therapist and creates a structural incentive to provide unfavorable treatment characterizations.
3. **Duty not to misrepresent clinical determinations:** Ms. Palacios represented to CDCR that my "non-completion" characterization was the product of clinical assessment when she knew it was the automatic output of a blanket policy applied uniformly to every participant. Misrepresenting policy-driven predeterminations as individualized clinical judgments to governmental agencies constitutes a form of professional dishonesty.
4. **Duty not to retaliate against clients for protected expression:** Ms. Palacios made false and defamatory statements about me to parole officials in direct response to my constitutionally protected complaints about program conditions. She then confirmed the retaliatory nature of her conduct by praising me when I ceased exercising those rights. Using the therapist-client relationship to punish protected speech and suppress advocacy constitutes an abuse of professional authority.
5. **Duty to provide transparent treatment criteria:** Ms. Palacios operated a treatment program with unpublished, internally contradictory criteria for phase progression, titration, and completion. She failed to provide me with written criteria, a meaningful path to completion, or any appeal or challenge mechanism. A licensed therapist has a duty to provide clients with transparent, achievable treatment goals.
6. **Duty to maintain accurate records:** Ms. Palacios admitted that homework assignments are "routinely lost" within the HOPE Program, yet she failed to implement any safeguards against record loss and forced participants to restart treatment phases due to her program's administrative failures. A licensed therapist has a duty to maintain accurate and complete records of client progress.
7. **Duty to comply with applicable law and regulation:** Ms. Palacios continued to apply HOPE's blanket retention policy after: (a) the San Mateo Superior Court's March 2023 order in *In re Frederick Dwyer* specifically condemned the policy; and (b) the April 2025 amendments to Title 15 CCR § 3574(f)(1) enacted to address the deficiencies. A licensed therapist has a duty to conform her practice to applicable law and regulatory requirements.

VIII. SPECIFIC HARM CAUSED BY MS. PALACIOS'S CONDUCT

As a direct result of Ms. Palacios's professional conduct, I continue to be subjected to custodial parole supervision conditions including: continuous GPS monitoring; curfew restrictions; geographic movement limitations; mandatory HOPE treatment attendance (multiple sessions per week); reporting requirements to parole officers; restrictions on employment, travel, and association; and the requirement to maintain CDCR-approved housing.

These conditions have specifically and directly prevented me from pursuing full, unrestricted employment as a Commercial Driver's License (CDL) holder. My documented lost wages total

no less than $109,408 for the years 2022–2024, representing the difference between my but-for CDL earning capacity of $72,000 per year and my actual supervision-suppressed W-2 earnings of $39,553 (2022), $11,145 (2023), and $55,894 (2024). These losses continue to accrue at approximately $6,000 per month ($72,000 annually) for each month I remain unable to pursue unrestricted CDL employment due to Ms. Palacios's conduct.

I have also suffered severe emotional distress, including: pervasive anxiety from continuous GPS monitoring imposed based on Ms. Palacios's predetermined treatment characterization; humiliation and stigma from being classified as having "not completed" treatment under a system where completion is unattainable; chronic sleep disturbance and hypervigilance arising from the cumulative stress of arbitrary custodial control; psychological harm from the knowledge that my continued custody rests on a misrepresentation; and ongoing distress from entrapment in a treatment system that profits from my continued enrollment with no achievable exit.

IX. SUPPORTING DOCUMENTATION AVAILABLE

I can provide the following documentation upon request:

8. The Order in *In re Frederick Dwyer*, No. SC-080355A (San Mateo Superior Court, March 20, 2023), documenting HOPE's blanket retention policy through sworn testimony of HOPE's own Executive Director of Clinical Training;
9. Relevant excerpts of the Alameda County Probation Department Procurement Contract No. 26374 (First Amendment), showing HOPE's billing rates and payment terms;
10. CDCR Form 1502-DR Discharge Review Report dated November 12, 2025, incorporating HOPE's treatment characterization and the resulting "Retain on Parole" recommendation;
11. My filed Complaint for Damages in San Joaquin County Superior Court, Case No. STK-CV-UF-2026-1032 (Newanforbi v. HOPE Psychotherapy, Inc., et al.), asserting claims for fraud, negligence, false imprisonment, intentional infliction of emotional distress, and interference with prospective economic advantage;
12. My filed Complaint for Damages (Defamation — Slander Per Se and Libel Per Se) against Katie A. Palacios in San Joaquin County Superior Court, arising from the August 2025 CTM statements;
13. W-2 wage statements documenting supervision-suppressed CDL earnings for 2022–2024;
14. BBS License Verification showing Ms. Palacios's active LMFT License No. 44555; and
15. My First Amended Complaint and service documentation in Newanforbi v. Derrick, et al., Case No. 2:26-cv-00004-DJC-JDP (E.D. Cal.), which includes claims arising from the same course of conduct.

X. REQUEST FOR INVESTIGATION

I respectfully request that the Board of Behavioral Sciences investigate Ms. Palacios's conduct and take appropriate disciplinary action. Ms. Palacios is a licensed therapist who exercises delegated governmental authority over the liberty of individuals under state supervision. Her conduct—applying a blanket retention policy rather than individualized clinical assessments, misrepresenting policy-driven predeterminations as clinical judgments, retaliating against a client for protected speech, operating a treatment program with no published criteria or appeal mechanisms, and maintaining an undisclosed financial conflict of interest that incentivizes

indefinite retention—represents a serious departure from the professional and ethical standards required of a Licensed Marriage and Family Therapist.

The harm caused by Ms. Palacios's conduct is ongoing. Every day that HOPE continues to apply its blanket retention policy to my treatment—and every treatment characterization Ms. Palacios submits to CDCR based on that policy—constitutes a new act of professional misconduct that perpetuates my continued custodial supervision, economic harm, and emotional distress.

Respectfully submitted,

/s/ Brendan Ngehsi Newanforbi
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